

SOFTWARE DEVELOPMENT AGREEMENT

Supplier-Neutral Approved Template — Version 6.5

Project: ROOTS-AI™ Phase 1 MVP

Status: FOR COMPLETION WITH SELECTED IMPLEMENTATION PARTNER

Date: ____ / ____ / 2026

Before signature, insert the selected party legal details, notice contacts and execution date. No technical or commercial scope schedule remains outstanding. Counterparty identity, notice contacts, execution date and signatures are execution fields and must be completed before signature.

PARTIES

Party	Legal details
Client	ROOTS AI HEALTH SYSTEMS, Inc. State of incorporation: Delaware, USA Registered address: _____ Company/registration number: _____ ("Client" or "ROOTS")
Implementation Partner	Legal name: _____ Registered address: _____ Company/registration number: _____ ("Implementation Partner")

1. Definitions and Interpretation

Term	Definition
Agreement	This Software Development Agreement, including its embedded Schedules and the documents expressly incorporated in Schedule 1.
Confidential Information	All non-public business, product, technical, scientific, financial, security and personal-data information, including source code, prompts, scoring rules and user data.
Controlled Data Annex	A ROOTS-issued dataset identified in the Master Requirements by filename, version, approval date and SHA-256 hash.
Deliverables	All code, configurations, schemas, APIs, interfaces, reports, documentation, tests, environments and other work required by Schedule 1.
Effective Date	The date on which the last party signs this Agreement.
Final Acceptance	ROOTS approval after successful UAT, delivery evidence and handover under Schedule 1 and Schedule 2.
Master Requirements	01_ROOTS_AI_Phase1_MVP_Master_Product_Implementation_Requirements_v3.3.pdf, Version 3.3, identified by the SHA-256 hash in Schedule 1.
Personal Data	Personal data and sensitive personal data as defined by applicable law, including identifiable health information.
Project	The ROOTS-AI™ Phase 1 MVP described in the Master Requirements.
UAT	User Acceptance Testing under Section 6 and the Master Requirements.
Warranty Period	Ninety calendar days following Final Acceptance.
Complimentary Support Period	Three calendar months following Final Acceptance.

2. Scope of Work

2.1 Project Obligation

The Implementation Partner shall design, build, test, deploy, document and hand over the Project in full accordance with Schedule 1. All enabling work reasonably required for a listed deliverable to operate safely and as specified is included in the fixed fee.

2.2 Incorporated Technical Baseline

Schedule 1 incorporates one technical baseline only: the Master Requirements identified by exact filename, version and SHA-256 hash. Its eight released Controlled Annexes C-01 through C-08, identified in Schedule 1 by exact filename, version and SHA-256 hash, are incorporated at execution and form part of the fixed baseline.

2.3 Order of Precedence

- This Agreement controls fees, liability, termination, governing law and dispute resolution.
- The Master Requirements controls product scope, technical behavior, security, delivery evidence and acceptance.
- A mutually executed Change Order modifies only the requirements expressly identified in that Change Order.
- No proposal, quotation, presentation, estimate, email or assumption reduces an incorporated requirement unless adopted in an executed Change Order.

2.4 Changes

A Change Order must identify the exact requirement changed, reason, cost, timeline and effect on security, science, testing and documentation. Defects, omissions, security corrections and work already required by Schedule 1 are not changes.

2.5 Subcontracting and Unauthorized Use

Material subcontracting or access to production data requires ROOTS' prior written approval. The Implementation Partner shall not use any Deliverable, ROOTS data or Confidential Information for another purpose, model, client or product.

2.6 Open-Source and Third-Party Components

Copyleft or source-availability obligations, including GPL or AGPL, require prior ROOTS approval. All third-party components must support commercial use, be security reviewed and appear in the final SBOM and license register.

3. Fees and Payment

3.1 Fixed Project Fee

The total fixed fee is Malaysian Ringgit Fifteen Thousand (RM 15,000.00), excluding only taxes and third-party charges expressly approved by ROOTS in writing before commitment.

3.2 Milestone Payment Schedule

Milestone	Acceptance evidence	Amount
Kickoff / G0	Executed Agreement; ROOTS-owned repository and accounts; team, plan and recurring-cost register confirmed	RM 5,000
Integrated Intelligence / G3	Day 14 gate accepted: deterministic engine, governed narrative and 19-section web/PDF report demonstrated on Staging	RM 5,000
Final Acceptance	Successful UAT; production deployment; all evidence, documentation, credentials and handover complete	RM 5,000

3.3 Payment Terms

- Invoices may be issued only after the applicable milestone is accepted in writing by ROOTS.
- Valid invoices are payable in Malaysian Ringgit by bank transfer within seven business days of receipt.
- Payments exclude applicable taxes unless stated otherwise.
- No payment or demonstration constitutes acceptance of incomplete or non-conforming integrated behavior.
- If withholding is required by law, ROOTS may deduct it and provide reasonable evidence. Each milestone amount is a maximum; unearned or rejected prepaid amounts must be refunded within seven business days. No third-party or recurring charge is reimbursable without ROOTS prior written approval identifying provider, purpose, amount, billing owner and cancellation method.
- ROOTS has no payment obligation without a valid invoice and the required milestone evidence.

4. Timeline and Governance

4.1 Duration

The entire Project period is thirty calendar days from the Effective Date, inclusive of the seven-calendar-day UAT period. A complete Release Candidate is due no later than Day 23, UAT runs on Days 24 through 30, and Final Acceptance is due no later than Day 30. Time is of the essence. Any extension requires ROOTS prior written approval.

Gate	Target
G0 — Kickoff	Day 0
G1 — Architecture	End Day 3
G2 — Assessment/Data	End Day 7
G3 — Intelligence/Report	End Day 14
G4 — Complete MVP	End Day 20
G5 — Release Candidate	No later than End Day 23
UAT	Days 24–30

4.2 Weekly Working-Software Demonstrations

The Implementation Partner shall provide weekly demonstrations of working software, maintain a shared issue tracker and decision log, and promptly identify dependencies and blockers. Slides alone do not satisfy a demonstration.

4.3 Delay and Force Majeure

A party affected by an event beyond its reasonable control shall notify the other promptly, mitigate the effect and provide evidence. Timeline relief is limited to the actual demonstrated impact and requires written agreement. Ordinary staffing shortages, underestimated scope and avoidable configuration failures are not force majeure.

5. Intellectual Property, Repository and Accounts

- The Git repository and provider accounts are created under and controlled by ROOTS from Day 0. Access granted to the Implementation Partner is revocable and least-privilege.
- Upon payment for the applicable accepted work, the Implementation Partner assigns to ROOTS all right, title and interest in custom Deliverables, free of liens or encumbrances.
- Prompt engineering, scientific mappings, scoring methodology, Recovery Potential logic and Phase 1 modifications are ROOTS confidential trade secrets and may not be reused or repurposed.
- Pre-existing materials must be disclosed before use. Embedded pre-existing materials require a perpetual, irrevocable, worldwide, transferable, sublicensable, royalty-free license sufficient for ROOTS to operate, modify and commercialize the Deliverables.
- All production accounts, domains, certificates, cloud projects, API organizations and billing accounts shall be owned or controlled by ROOTS where the provider permits.

6. Delivery, UAT and Acceptance

6.1 Complete Delivery

UAT begins only after all in-scope functions, Staging deployment, test reports, documentation and user instructions are delivered in writing. Mockups, isolated branches, incomplete APIs, manual workarounds and unreviewed documents are not complete delivery.

6.2 UAT

- ROOTS has seven calendar days to test a complete delivery.
- Material remediation pauses the UAT clock. A reasonable retest period begins after redelivery.
- Acceptance requires every applicable criterion in Section 18 of the Master Requirements, zero open Critical or High defects, and approved disposition of Medium and Low defects.
- Silence, payment, use of a demonstration or passage of time is not acceptance.
- Final Acceptance occurs only when ROOTS approves the Project Acceptance Record in Schedule 2.

6.3 Severity

Severity	Definition
Critical	Prevents system use, causes data loss, exposes sensitive data or compromises security.
High	Disables a core function or creates material incorrect output without a practical workaround.
Medium	Impacts a non-critical function; a reasonable workaround exists.
Low	Cosmetic or minor usability issue without material functional effect.

7. Warranty

- The Implementation Partner warrants substantial conformity with Schedule 1 for ninety calendar days after Final Acceptance.
- Warranty covers implementation defects, specification non-conformance, regression defects and attributable security or configuration errors.

- Reported warranty defects are remedied without additional charge.
- Third-party outages are excluded only where all required handling, fallback and monitoring were implemented and negligent configuration did not contribute.
- New features and ROOTS-authorized post-acceptance modifications are outside warranty unless they reveal an existing defect.

8. Complimentary Support and Maintenance

For three calendar months after Final Acceptance, the Implementation Partner shall provide, without additional charge, minor bug correction, reasonable configuration and deployment assistance, operational support and minor non-scope-changing UI refinements. The support period runs concurrently with, and does not narrow, the Warranty Period.

New modules, material business-logic changes, new integrations and major redesigns require a Change Order. Any annual maintenance arrangement after the complimentary period is separate; unless otherwise agreed, the reference annual fee is 15% of the fixed Project fee.

9. Confidentiality

- Each party shall protect the other's Confidential Information using at least reasonable care and use it only for this Agreement.
- Access is limited to personnel who need it and are bound by equivalent confidentiality obligations.
- Confidentiality obligations survive termination for five years; trade-secret obligations survive while the information remains a trade secret.
- On request or termination, Confidential Information is returned or securely destroyed, subject to legally required retention and documented backups.
- Publicity, logos, case studies and disclosure of the relationship require ROOTS' prior written approval.

10. Data Protection and Security

- The Implementation Partner shall comply with applicable privacy and security law, including Malaysia's Personal Data Protection Act 2010 and applicable amendments, regulations, standards, circulars and guidance.
- Personal Data is processed only on documented ROOTS instructions and only for the Project. No sale, advertising use, model training or unrelated analytics is permitted.
- Subprocessors and cross-border transfers require prior ROOTS approval, contractual safeguards, a current processor register and compliance with applicable transfer requirements.
- Before transmitting identifiable health information to a service, required data-processing agreements or BAAs and service configurations must be in place; otherwise approved de-identification must be used.
- The Implementation Partner shall notify ROOTS within twenty-four hours of a suspected or confirmed unauthorized access, loss, security event or Personal Data breach, preserve evidence, support investigation and provide information needed for notifications.
- Security controls, retention, deletion, audit, backup, recovery, RLS, MFA, encryption and testing shall meet the Master Requirements.

11. Termination

11.1 For Convenience

ROOTS may terminate for convenience on seven calendar days' written notice, or immediately by agreement. Transition and handover obligations begin on notice and do not wait for expiry of the notice period.

11.2 For Cause

Either party may terminate for an uncured material breach after seven calendar days' written notice. ROOTS may terminate immediately for insolvency, cessation, serious confidentiality or security breach, unauthorized IP/data use, or abandonment of the Project.

11.3 Consequences

- All work, repositories, credentials, documentation and ROOTS data are delivered promptly in usable form.
- ROOTS pays only for completed, conforming and usable work accepted through the termination date.
- Rights in paid accepted work transfer to ROOTS.
- Access is revoked and Confidential Information is returned or destroyed.
- Any unearned prepaid amount shall be refunded within seven business days. The Implementation Partner may not withhold source code, credentials, data, documentation or deployment access because of a disputed invoice.
- The Implementation Partner provides reasonable transition assistance at the rates agreed in advance, except assistance needed to remedy its breach is without charge.

12. Liability and Indemnity

Except for the exclusions below, each party's aggregate liability under this Agreement shall not exceed the total Project fees paid or payable, and neither party is liable for indirect or consequential loss to the extent permitted by law.

The limitation does not apply to fraud, willful misconduct, gross negligence, breach of confidentiality, infringement or misappropriation of intellectual property, unauthorized use of ROOTS data, or liability that cannot lawfully be limited.

The Implementation Partner shall indemnify ROOTS against third-party claims, damages and reasonable costs arising from its infringement of third-party rights, unauthorized data processing, breach of confidentiality, or violation of applicable law attributable to its acts or omissions.

13. Governing Law and Dispute Resolution

This Agreement is governed by the laws of Malaysia.

- The parties first attempt good-faith negotiation for ten calendar days after written dispute notice.
- If unresolved, the parties attempt mediation administered by the Asian International Arbitration Centre (AIAC) in Kuala Lumpur.
- If mediation does not resolve the dispute within ten calendar days after appointment of the mediator, it is finally resolved by arbitration administered by AIAC under the AIAC Arbitration Rules 2026 and its Fast Track Procedure.

- The seat is Kuala Lumpur, Malaysia; the tribunal consists of one arbitrator; the arbitration proceeds on a documents-only basis unless the tribunal determines a hearing is necessary; the language is English; the award is final and binding.
- Either party may seek urgent interim or protective relief from a court of competent jurisdiction without waiving arbitration.

14. General

- This Agreement and its Schedules are the entire agreement and supersede prior negotiations concerning the Project.
- The Implementation Partner is an independent contractor and has no authority to bind ROOTS.
- Neither party may assign this Agreement without written consent, except ROOTS may assign it to an affiliate or successor in connection with a reorganization or sale.
- If a provision is invalid, the remaining provisions continue in force and the invalid provision is adjusted to the minimum extent necessary.
- Notices are in writing and sent to the party addresses and designated emails recorded in Schedule 5. Email notice is effective when received without an automated delivery failure; hand or courier notice is effective on documented delivery. A party must promptly notify the other of any change.
- Waiver of one breach is not waiver of another. Amendments require a written document executed by authorized representatives.
- Sections concerning IP, confidentiality, data protection, liability, dispute resolution and transition survive termination.

Schedule 1 — Incorporated Technical Baseline

Document	Version	SHA-256	Role
01_ROOTS_AI_Phase1_MVP_Master_Product_Implementation_Requirements_v3.3.pdf	3.3	e7991eb2e6bc77187f203c6af347046373da6cc600d4f8a6a78aadbcc4e69f8b	Sole product, technical, delivery, evidence and acceptance baseline
02_ROOTS_AI_C01_Canonical_Question_Bank_v1.0.0.xlsx	1.0.0	36785cc15e0be8a7781d7b4eec51eb4be1ca31b712d622e24c071f8f66453802	Executable 73-question / 13-module assessment dataset
03_ROOTS_AI_C02_Canonical_Scoring_Rules_and_Golden_Tests_v1.0.0.xlsx	1.0.0	fe62560a0abc5a4da541516ad2e8e20a1a6511f986d0c757f084114de530b226	Executable deterministic scoring rules and 30-case Golden Test Pack
04_ROOTS_AI_C03_Report_Content_and_Visual_Reference_Pack_v1.0.0.pdf	1.0.0	877d71a7fd815e31a410325edca7b9610216f1a50bab9b6944c35c5b9ce5256f	Binding 19-section report content and visual reference
05_ROOTS_AI_C04_Website_Content_and_Legal_Copy_Pack_v1.0.0.docx	1.0.0	b9f5ea308bb8f7b012a1805521f722b9db5c6899b26dc18d82b74d1498500bac	Binding website, legal, consent and system copy
07_ROOTS_AI_C05_UI_UX_Screen_Implementation_Specification_v1.0.0.pdf	1.0.0	450a74f6933dc1c11b18ba7efab54e14257b8c190a3cd0d95508057ac00cb731	Binding page-by-page UI/UX, navigation, roles, responsive and state specification
06_ROOTS_AI_Secure_Kickoff_and_Access_Provisioning_Checklist_v1.0.0.docx	1.0	12c98b65b9a59e31cf4839444f6b38c4541d3c9df99e8ab7d16f8d18673eec8	Day-0 account ownership and secure access provisioning procedure
09_ROOTS_AI_C06_Executable_Technical_Baseline_v1.0.0.pdf	1.0.0	ed79a1864a6a9b9100d0706ca7c779e59027f7851f1ff159de2b392a6b571fd7	Binding importable OpenAPI, JSON Schema, SQL, RLS, ERD and machine-readable handoff
10_ROOTS_AI_C07_Atomic_Requirement_Traceability_and_Acceptance_v1.0.0.pdf	1.0.0	130ea489ae28281fedc456cbca89c4d3627ba2f1607f9189c4f3a5475f5709d3	Binding atomic source-to-requirement-to-test traceability baseline
11_ROOTS_AI_C08_Editable_UIUX_and_Brand_Asset_Handoff_v1.0.0.pdf	1.0.0	1c1c5f8f676e9da0f7b36cd0b3263e1a23d7210d9e87e37ce7a71014da77e10d	Binding editable SVG/Figma-import frames, tokens, screen catalog and assets

Controlled Annexes C-01 through C-08 and the Secure Kickoff Checklist are present in Schedule 1 and included in the fixed scope and fee. The Implementation Partner shall checksum-verify all files at G0. No other technical document, duplicate, historical draft, proposal or explanatory report is incorporated.

Schedule 2 — Project Acceptance Record

Field	Record
Project	ROOTS-AI™ Phase 1 MVP
Delivered release/tag	
Delivery date	

Field	Record
UAT start / completion	
Repository URL	
Staging / Production URLs	
All acceptance criteria passed	Yes / No
Critical or High defects open	Yes / No
Medium/Low disposition reference	
Handover complete	Yes / No
ROOTS acceptance decision	Accepted / Rejected / Retest Required
Authorized ROOTS approver / date	

Schedule 3 — Handover Checklist

#	Handover item	Status / evidence
1	Source code in ROOTS-owned repository	
2	Tagged release and build reproducibility	
3	README, local setup, installation and deployment guides	
4	Environment variable register without secret values	
5	OpenAPI/Swagger specification and examples	
6	Database schema, ERD and migrations	
7	RLS policies and negative-test evidence	
8	Role and permissions matrix	
9	Architecture and end-to-end data-flow diagrams	
10	Processor/subprocessor and cross-border data-flow register	
11	Encryption, report-access, retention and deletion implementation	
12	Backup configuration and successful restore evidence	
13	Audit log specification and samples	
14	Published scoring release and Golden Test Pack	
15	Prompt/template/governance version register	
16	Admin user manual	
17	Test, coverage, security, performance and accessibility reports	
18	Bug tracker and UAT report	
19	SBOM and third-party license register	

#	Handover item	Status / evidence
20	Recurring service/cost and account-ownership register	
21	Privacy, Terms, Cookie, Medical and AI disclaimer source pages	
22	Recorded knowledge-transfer session and technical Q&A	
23	All production credentials and provider access confirmed under ROOTS control	
24	C-05 UI/UX route inventory, component catalog, responsive screenshots, accessibility/visual-regression evidence and editable assets	

Schedule 4 — Data Processing Addendum

This Schedule applies whenever the Implementation Partner accesses or processes Personal Data for the Project and prevails over inconsistent processing instructions.

Topic	Binding instruction
Roles	ROOTS acts as data controller; the Implementation Partner acts only as data processor on documented ROOTS instructions. Neither party is authorized to expand the other party's legal role.
Subject and duration	Design, development, testing, deployment, hosting support and warranty for Phase 1. Processing lasts only while required by the Agreement and ends with return or verified deletion.
Data subjects	Prospective and enrolled participants, authorized ROOTS personnel, administrators and support correspondents.
Data categories	Account/contact information; assessment answers; physical and health-related measurements voluntarily provided; consent records; scores and reports; device, security, audit and support records.
Permitted purposes	Build, test, secure, operate, troubleshoot and support the Deliverables. No advertising, sale, profiling outside the approved assessment, model training, product improvement for another client or independent reuse.
Production-data gate	Synthetic data only until the G5 security evidence is accepted and ROOTS gives written approval for production-data access. Access is least-privilege, named, MFA-protected, logged and revocable.
Personnel	Only personnel with a need to know, confidentiality duties and appropriate security training may process Personal Data.
Security	Implement the Master Requirements, including encryption, RLS, private storage, MFA, secret management, logging, backup/restore, vulnerability testing, retention and deletion controls.
Incident notice	Notify ROOTS within 24 hours of suspected or confirmed unauthorized access, loss or breach; preserve evidence; provide continuing updates; and assist with regulatory and data-subject notifications.
Subprocessors	No subprocessor without prior written ROOTS approval. Maintain a current register and impose equivalent written confidentiality, security, deletion, audit and incident obligations.
Cross-border transfer	No transfer or remote access outside an approved country or hosting region without prior ROOTS approval, documented transfer basis, due diligence and safeguards required by applicable law.
Assistance	Promptly assist with access/correction/deletion requests, privacy notices, consent records, DPIA, DPO and regulator enquiries, audits, breach assessment and evidence preservation.
Return and deletion	At ROOTS request or termination, return usable exports and delete remaining Personal Data within 15 calendar days, except legally required retention and isolated backups subject to protection and scheduled expiry. Provide written certification.
Audit evidence	Provide policies, processor register, data-flow records, security evidence and reasonable audit access. Material findings are remedied without additional charge when caused by non-conformance.

Schedule 5 — Contacts and Legal Notices

Party	Legal notice details	Project contact
ROOTS AI HEALTH SYSTEMS, Inc.	Registered address: _____ Notice email: _____ Attention: _____	Dr. Nour Kakouni, CEO Project email: _____
Implementation Partner	Legal name: _____ Registered address: _____ Notice email: _____ Attention: _____	Name/title: _____ Project email: _____

Execution

The parties execute this Agreement through their authorized representatives. All blanks in the Parties table and Schedule 5 must be completed before signature.

For ROOTS AI HEALTH SYSTEMS, Inc.	For the Implementation Partner
Name: Dr. Nour Kakouni Title: CEO Signature: _____ Date: _____	Legal entity: _____ Name: _____ Title: _____ Signature: _____ Date: _____